

LW6173E: PRIVATE INTERNATIONAL LAW: BASIC PRINCIPLES AND ADVANCED APPLICATION IN THE DIGITAL ECONOMY

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Private International Law: Basic Principles and Advanced Application in the Digital Economy

Subject Code

LW - Law

Course Number

6173E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

LW6173C

Exclusive Courses

Nil

Additional Information

Nil

Part II Course Details

Abstract

Legal disputes involving a foreign element create three fundamental questions. First, whether the courts of a forum have jurisdiction on the dispute. Second, if they have jurisdiction, whether foreign law(s) may or should be taken into account in order to resolve the dispute in question. Third, whether foreign judgments are to be recognised and enforced. These questions arise routinely in commercial affairs, claims in tort, marriage and divorce disputes, inheritance, wills and rights with respect of movable and immovable property. International contracts almost invariably pose the questions of jurisdiction and applicable law. Commercial arbitration poses one additional question: which law applies to the arbitration proceedings.

Every legal system has given answers to these questions but the answers are not always the same. The course provides students with a practical and legal background to the nature, scope and rules of Hong Kong's private international law (for the purposes of this course private international law is understood as conflict of laws) with emphasis on the issues arising in commercial disputes and arbitration. The course will cover issues of jurisdiction, choice of law, proof of foreign law, jurisdiction of arbitral tribunal, enforcement of arbitral awards and foreign judgements. The law of Hong Kong will be compared with that of other jurisdictions to enable students to gain an understanding of the various solutions developed around the world. Technology, particularly transactions online and on the “cloud”, automated (smart) contracts, torts committed online and the location of online assets, all pose challenges to the adopted solutions for private international law issues. This is because the elements connecting a court with a particular dispute are not as easy to identify as under commercial practices predating the development of each type of technology. The course will discuss these issues and the way solutions are being developed.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Describe the basic concepts of private international law.		x		
2	Discuss situations where private international law is relevant and critically assess the ways such problems have been solved under Hong Kong law and under the law of other states.		x	x	
3	Explain how conflict of laws are resolved under the law of Hong Kong in contractual disputes, in extra-contractual liability cases and in alternative dispute resolution situations.		x	x	
4	Apply conflict of law rules and relevant statutes to complex factual problems.		x	x	x
5	Describe and critically assess the problems of private international law posed by technological development in commercial disputes.		x	x	

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Seminars	Students will engage in interactive classes on the substantive issues of Private International Law, its concepts and its application.	1, 2, 3, 4, 5	3 hrs
2	Guided individual studying	Students will critically engage with case law, text books and research articles related to course topics.	1, 2, 3, 4, 5	
3	Formative work, quizzes and problem solving	Students will engage with the application of legal principles and knowledge to practical situations as a means of improving their skills and knowledge.	1, 2, 3, 4, 5	

Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks ("-" for nil entry)	Allow Use of GenAI?
1	Quizzes (4x5%) or assignment	1, 2, 3	20	-	No

Continuous Assessment (%)

20

Examination (%)

80

Examination Duration (Hours)

2

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Students must obtain a minimum mark of 40% in examination and an overall mark of 40% in order to pass the course.

Students will be required to take a computer-based examination in a computer laboratory. During the examination students will not have access to the Internet. However relevant materials will be allowed in the exam.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain a minimum mark of 50% in examination and an overall mark of 50% in order to pass the course.

Students will be required to take a computer-based examination in a computer laboratory. During the examination students will not have access to the Internet. However relevant materials will be allowed in the exam.

Assessment Rubrics (AR)

Assessment Task

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter:
Quizzes/assignments

Criterion

Demonstration of the ability to correctly identify and define the concepts of private international law, its legal sources, theoretical considerations and apply them to the solution of short problems.

Excellent

(A+, A, A-) Strong evidence of accurate and complete knowledge of the concepts and theories of private international law. Strong evidence of functional skills in applying the principles of private international law to practical problems.

Good

(B+, B, B-) Evidence of accurate and complete knowledge of the concepts and theories of private international law. Satisfactory functional skills in applying the principles of private international law to practical problems.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter:
Examination

Criterion

Demonstration of ability to identify issues.
Application of knowledge to specific problems and discussion questions.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024:
Quizzes/assignments

Criterion

Demonstration of the ability to correctly identify and define the concepts of private international law, its legal sources, theoretical considerations and apply them to the solution of short problems.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Fair

N/A

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024:
Examination

Criterion

Demonstration of ability to identify issues.
Application of knowledge to specific problems and discussion questions.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Fair

N/A

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

Private international law, Conflict of laws, public policy, sovereign immunity, renvoi, jurisdiction, forum non conveniens, anti-suit injunction, choice of law in contract, choice of law in extra-contractual liability, choice of law in alternative dispute resolution, enforcement of arbitral awards and foreign judgements.

Seminar 1. Introduction – What is the course about.

Seminar 2. Basic Concepts of Private International Law. Foreign element, connecting factors and their definition, substantive and procedural issues. Characterisation.

Seminar 3. Establishing and challenging the jurisdiction of Hong Kong courts.

Seminar 4. Contractual disputes 1: Applicable law- Agreements on jurisdiction and choice of law.

Seminar 5. Contractual disputes 2: Incorporation of applicable law and jurisdiction clauses into contracts. Application of contractual agreements to parties other than the original parties.

Seminar 6. Applicable law and jurisdiction for non-contractual disputes.

Seminar 7. The anti-suit injunction.

Seminar 8. Enforcement of judgements.

Seminar 9. Issues with arbitration I. The law applicable to arbitration proceedings. The role of the seat of the arbitration.

Seminar 10. Issues with arbitration II. Enforcement of awards. Anti-suit injunctions in support of arbitration proceedings.

Seminar 11. Technology and private international law. Smart Contracts.

Seminar 12. Conflict of laws for Cryptocurrencies and fintech.

Reading List

Compulsory Readings

Title	
1	Sir Lawrence Collins and the others (eds), Dicey, Morris & Collins The Conflict of Laws Volumes 1 and 2 (15th edition, Sweet & Maxwell 2018).
2	James Fawcett and Janeen M. Carruthers, Cheshire, North & Fawcett Private International Law (15th edition, Oxford University Press 2017).
3	Graeme Johnston, The Conflict of Laws in Hong Kong (3rd edn, Sweet & Maxwell Asia 2017).
4	David McClean and Kisch Beevers, Morris Conflict of Laws (9th edn, Sweet & Maxwell 2016).
5	Briggs A, Agreements on Jurisdiction and choice of law, Oxford University Press, 2008.
6	Briggs A, The Conflict of Laws, (4th edition), Oxford University Press, 2019.
7	Thomas Rapfael, The anti-suit injunction 2nd edition 2019.
8	International and Comparative Law Quarterly
9	Journal of Private International Law
10	Lloyd's Maritime and Commercial Law Quarterly

Additional Readings

Title	
1	Conflict of Laws.net (http://conflictoflaws.net)
2	Hague Conference on Private International Law http://www.hcch.net/index_en.php